

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

**CERTAIN SECONDARY
CYLINDRICAL BATTERIES,
COMPONENTS THEREOF, AND
PRODUCTS CONTAINING THE
SAME**

Inv. No. 337-TA-1518

ORDER NO. 3: INITIAL SUBMISSIONS

(August 28, 2026)

The above-captioned investigation was instituted upon publication of the Commission's Notice of Investigation in the *Federal Register* on Monday, August 24, 2026. 91 Fed. Reg. 54764-65, EDIS Doc. ID 893142 (Aug. 24, 2026).

The parties are hereby ORDERED to submit a joint statement regarding scheduling and discovery, addressing the following:

1. Proposals regarding the target date for this investigation.
2. Any scheduling conflicts with respect to an evidentiary hearing (which will be held at least seven months before the target date).
3. Whether a *Markman* hearing is necessary and if so, any scheduling conflicts with respect to a *Markman* hearing that will be scheduled four to five months from the date of institution.
4. The proposed issues to be litigated (within the framework of the general issues determined by the Commission's notice of investigation), and any stipulations agreed to by the parties.
5. A description of information and evidence that each party intends to submit to prove its own case.
6. A description of specific information and evidence that each party will be seeking from other parties and third persons.
7. Any preliminary issues likely to arise that will require judicial intervention.

8. Procedural stipulations on which the parties can agree (*e.g.*, electronic service).
9. Proposed limitations on discovery on which the parties can agree (*e.g.*, initial disclosures of information without formal discovery, limitations on depositions, limitations on discovery of electronically stored information).
10. Status of any related litigation or proceedings before the U.S. Patent and Trademark Office.
11. Status of any settlement discussions.
12. Any proposed modifications to the protective order.
13. Any proposals relating to the NEXT Advocates Program (*see* Ground Rule 14).
14. Dates and times the parties are available for a preliminary conference via WebEx the week of September 14, 2026. The preliminary conference is primarily an opportunity for the parties to ask any questions they may have regarding the Ground Rules or other procedural aspects of this investigation.

The joint submission shall be provided to the Administrative Law Judge no later than Friday, September 11, 2026. The submission shall be made by email to Bhattacharyya337@usitc.gov and need not be filed with the Commission Secretary.

SO ORDERED.



Monica Bhattacharyya
Administrative Law Judge